

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0000273

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: BERNARDINA GLORIA
VELASQUEZ PERDOMO

and

RESPONDENT: FLORENCIO VICENTE
OSORIO

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD SUPPORT

RULING

This matter is on calendar following Petitioner's (Mother) May 13, 2026, Request for Order (RFOs for guideline child support for the parties' two minor children, Angel (DOB: 05/19/2013) and Irma (DOB: 06/17/2015). The matter was originally heard on June 11, 2026, and continued to July 2, 2026, for Respondent (Father) to get assistance from the Legal Self Help Center.

Mother submitted an Income and Expense Declaration on May 13, 2026, and reported zero income, \$1,100 income from partner support from a previous relationship, and \$1,110 contributed by her husband to her expenses. Mother reported that she does not file taxes. Mother stated she doesn't work because she stays home to care for a baby, but the infant is not listed or identified on page 3 of her IED.

Finally, as it relates to Mother's submissions, in her June 18, 2026, Declaration, Mother states that when they were a couple, Father told her that he earned \$35 to \$40 per hour as a painter.

Father submitted an Income and Expense Declaration on June 18, 2026, and submitted work calendars reporting income of \$1,920 for April 2026, \$1,740 for May, and \$1,600 for June. Father's reported earnings reflect \$1,753 average per month in self-employment income. Father reports that he does not file taxes and that his sister loans him money on the months he can't meet his expenses.

The parties agree that the children are with Father every weekend from Friday after school until Monday drop-off at school. $3 / 7 = 43\%$.

Assumptions/ Inputs Used in Guideline Child Support Calculation

The following monthly inputs were used in the xSpouse calculation:

Father:

\$1,753 in self-employment income

43% monthly time share

Mother:

\$1,100 partner support (listed under other nontaxable income)

One-half hardship for the child she has with new husband; Husband pays 100% of their expenses.

Guideline Child Support

Based on the foregoing, the Court orders as follows:

Effective May 13, 2026, guideline child support is ordered payable by Father to Mother in the amount of \$89 per month, payable one-half on the 1st and one-half on the 15th of each month. The low-income adjustment applies at the lowest amount of the range. Child support shall continue until further order of the Court, or until the child marries, dies, is emancipated, reaches age 19, or reaches 18 and is not a full-time high school student, whichever occurs first. The parties will share equally in reasonable uninsured health care costs incurred for the children, and the standard health insurance covered orders shall apply.

As authorized by CRC Rule 5.125, the Court will prepare the formal Findings and Order After Hearing (including Forms FL-342 and FL-192).

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0001073

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: KIMMA BARRY

and

RESPONDENT: KEITH BARRY

NATURE OF PROCEEDINGS: REVIEW HEARING

RULING

This matter is on calendar for compliance review following an April 30, 2026, hearing regarding the parties' daughter Maggie (DOB: 10/18/2012).

On April 30, 2026, the Court awarded joint legal custody to the parties and sole physical custody to Petitioner/Mother. Mother was ordered, within 30 days, to provide Respondent/Father with documents from Maggie's doctors containing their recommendation that Maggie attend hospital-at-home online schooling, and, by June 26, 2026, an update regarding Maggie's school attendance from January 1, 2026, through the end of the academic semester. The parties were ordered to continue to work in joint therapy with a reunification therapist. Father was ordered to take a parenting class. Finally, the Court ordered that Maggie be seen by a dentist by June 26, 2026.

Mother filed a CPC questionnaire on June 26, 2026, stating that the parties are working on a global settlement. Mother filed a supplemental declaration providing an update on June 30, 2026.

Mother's supplemental declaration states: (1) Maggie has been diagnosed with dysautonomia, a disorder affecting the regulation of her autoimmune nervous system; (2) Maggie is enrolled at California Virtual Academies, an online public school; and (3) during the 2025-26 school year Maggie was enrolled for 180 days, was present for 156 days, and absent 24 days. Mother provided no information relating to dental care.

Mother requests that Maggie remain in Mother's primary physical custody as set forth in this Court's April 30, 2026, Order.

Parties are ordered to appear to address the provisions of the April 30, 2026, Order that have not been addressed in the filings of the parties (e.g., paragraphs 3, 5, 6, and 7).

Counsel for Mother to prepare the Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0001811

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: MARCEL JAMES SHADD	
and	
RESPONDENT: DIAMOND HARDMOND	

NATURE OF PROCEEDINGS: REQUEST FOR ORDER –VISITATION

RULING

This matter is before the Court on Petitioner/Father's November 25, 2025 Request for Order (RFO) to modify visitation regarding the parties' daughter, Milano (DOB:09/04/2023). Father seeks to modify the terms of the Findings and Order After hearing entered on August 19, 2025. The parties were re-referred to Family Court Services (FCS) at the hearing on January 8, 2026. Respondent/Mother's counsel noted that a Domestic Violence Restraining Order (DVRO) in San Joaquin County was issued on December 26, 2025, naming Father as a restrained person and Mother as the protected person. At the DVRO hearing on May 6, 2026, the Court informed the parties that the transfer of the matter from San Joaquin to Marin County was complete, and the Court terminated the December 26, 2025 DVRO, made orders regarding exchanges of Milano, referred the parties to FCS, and continued Father's November 25, 2026 RFO to July 2, 2026.

Both parents were interviewed by FCS and a report was filed on June 22, 2026. Recommendations were made regarding visitation as well as a recommendation to transfer venue to San Joaquin County.

On June 26, 2026, Mother filed a statement of agreement/disagreement to the FCS recommendations stating that she agrees with the FCS recommendations.

On June 26, 2026, Father filed a statement of agreement/disagreement to the FCS recommendations. Father agrees with recommendations #7 and #8, and with the 6:00 p.m. video-call time. Father disagrees with the location exchanges. Father requests that if the matter is being transferred, that it be transferred to Alameda County where he lives, and the courthouse is more accessible to both parties. Father also requests additional time for summer and vacation in a step-up format, make-up calls for missed, unanswered or calls that are ended early, clarification for holiday schedule, and orders around Mother moving without notice to Father.

Father states that he does not have a verified current address for Mother and Milano. For this reason, it is unclear whether the matter should be transferred to Alameda County (or returned to San Joaquin County). Mother is ordered to provide her current address to Father and to the Court.

Father requests clarification of his three-hour visits on the “off weekends”. There is currently no visitation for Father on those weekends, Father’s visits occur from Friday to Sunday on alternate weekends. The Court clarifies and orders that Father has the 1st, 3rd and 5th (if there are 5) weekends of the month, with the weekend defined as beginning on the Friday.

The Court has reviewed the submissions of the parties as well as the FCS report. The Court finds good cause and that it is in the best interest of the child, Milano, to adopt the recommendations of FCS as modified as follows:

All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. Venue for this matter shall be transferred to San Joaquin County subject to confirmation that this is the county of primary residence of Milano. All future custody and visitation RFOs shall be filed in San Joaquin County.
2. Parents shall file a copy of the Marin County Family Court orders issued following the 7/2/26 hearing with the San Joaquin County Family Court.
3. No changes to the timeshare. Milano shall continue to be in Father’s custody on alternate weekends from Friday 4 PM through Sunday 6 PM. Father has the 1st, 3rd and 5th (if there are 5) weekends of the month, with the weekend defined as beginning on the Friday. Milano shall be in Mother’s custody at all other times when not in Father’s custody.
4. Exchanges shall continue to be at the Tracy Police Department until further court order.
5. Video calls for the noncustodial parent shall occur at 6 PM. Father’s calls shall be four times a week (on Monday, Tuesday, Wednesday, and Thursday each week). Mother’s calls shall be on the Saturdays of Father’s alternating weekends in which he has custody. Similarly, Father’s calls shall be on the Saturdays of Mother’s alternating weekends in which she has custody. Milano shall be made available for calls with the other parent.
6. Holidays: Unless otherwise agreed to between the parents, the following holiday schedule shall apply.

Father’s Day/Mother’s Day: shall be with the parent being honored.

Halloween: in odd numbered years, if Halloween falls on a weekday, the noncustodial parent may have a visit from 3 PM to 7 PM.

Thanksgiving: shall be defined as from 7 PM the day before (Wednesday) through Sunday 6 PM. Even years with Father, odd years with Mother.

Christmas: shall be defined as from 7 PM on 12/24 through 5 PM on 12/27. Even years with Mother, odd years with Father.

July 4: even years with Mother, odd years with Father.

Milano's birthday: The noncustodial parent may have a brief visit (two hours) with Milano on her birthday if they wish to do so. This visit shall not include the other parent unless otherwise mutually agreed upon.

Parents may modify the holiday schedule at any time per mutual parental agreement.

7. Parents shall continue to communicate all coparenting matters through Our Family Wizard. All coparenting communications shall be child focused.

8. Mother shall post on Our Family Wizard the information needed for Father to access Milano's medical and other relevant records.

Counsel for Mother to prepare the Findings and Order After hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002079

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ANTONY GRAEME
SCOTT

and

RESPONDENT: ING-CHUAN SHEN

NATURE OF PROCEEDINGS: 1) REQUEST FOR ORDER –CHILD/SPOUSAL SUPPORT
2) ORDER – SHOW CAUSE – FAILURE TO FILE
3) CASE PROGRESS CONFERENCE

RULING

This matter is set for hearing on Petitioner/Father's May 18, 2026, Request for Order (RFO) for (1) guideline child support regarding the parties' shared daughter, Melody (DOB: 12/26/2010), (2) pendente lite spousal support, and (3) a contribution of \$15,000 for Father's attorney's fees and costs. Father further asks that support be ordered retroactive to February 1, 2026, the date when the parties attempted to resolve this matter out-of-court. Father states that Mother refused to agree to preserve retroactivity, requiring Father to file his RFO even though he was unrepresented. With regard to Father's request for attorney's fees, Father's RFO does not provide information regarding his attorney's billing rate, expertise, or why the fees and costs are necessary and reasonable. Following the filing of this RFO, on June 23, 2026, Father retained counsel.

Respondent/Mother filed a Responsive Declaration June 18, 2026. First, Mother agrees to guideline temporary spousal support, with an imputation of minimum wage income to Father, and orders from this Court that Father seek full-time employment as well as a Gavron order. Second, Mother seeks guideline child support to be paid by Father to Mother as Mother has effectively 100% custody of Melody. Third, Mother agrees to a contribution for attorney's fees of \$15,000. Mother requests retroactivity be limited to the date of filing.

Father's May 18, 2026, Income and Expense Declaration reports zero W2 income and \$1,164 in self-employment income. Father asserts that he is paying \$5,383 per month for their daughter to attend boarding school in Japan. Father last filed taxes in 2024, jointly with Mother, and their 2024 tax return shows Adjusted Gross Income of \$127,274 ($\div 12 =$ \$10,606 a month). Father states that he was not working, and graduated from his Masters Program in 2024, implying that the 2024 income was all earned by Mother.

Father states that he visits with their daughter occasionally, when Mother allows it. He reports that the minor child is currently in California (see Father Reply, filed June 25, 2026, 2:23-27.) There is no order and no custody and visitation RFO pending. Father asks the Court to apply a 50% timeshare since the child is in boarding school in Japan (Mother lives in Taiwan and Father lives in Marin.)

Mother's June 18, 2026, Income and Expense Declaration does not report on W2 income and reports \$2,302 in Dividends/interest income and a loss of -\$1,442 in rental income. Mother reports \$17,195 in expenses and zero debt. Mother asserts that she pays \$6,448 per month for their daughter to attend boarding school in Japan and pays for all expenses associated with their daughter Melody. Mother also reports she received a total of \$88,880 in "two non-income cash gifts from [her] mother" in 2025. (See Mother's June 18, 2026, Income and Expense Declaration, page 2, Item 8.)

Mother states that Father has no custodial time with the child, however she reported that in 2026, Melody spent about 2.5 weeks over the Christmas/New Year holiday in Marin. The Court calculated that as a total of 18 half days (there is no indication of overnight visits), or 9 days total for a 2% timeshare.

In his RFO and Income and Expense Declaration, Father requests that the Court calculate guideline spousal support based on \$20,000 per month income for Mother. Father's June 25, 2026, Support Calculations attributes \$17,153 monthly income to Mother, based on her expenses.

The Court needs more information from Mother regarding how she is paying her expenses.

In addition, the Court needs more information regarding how each of these parties are meeting their expenses, and regarding the timeshare, before it can determine guideline pendente lite spousal support and guideline child support.

Father also requests Mother pay for his travel expenses to see their daughter, but he has not provided any information about those expenses.

Agreement regarding Contribution to Attorney's Fees

With regards to attorney fees, Mother reports on her Income and Expense Declaration that she has assets valued at over \$5,287,533 of which \$183,443 is in cash or checking account. Father reported \$614,635 in assets of which \$3,121 is in cash or checking account.

The Court makes no findings as to the necessity for ongoing contributions for attorney's fees. But the Court notes that there is agreement between the parties as to the initial contribution of \$15,000. Accordingly, Mother is to pay Father \$15,000 towards attorney's fees and costs.

Continuance for Calculation of Child Support/Pendente Lite Spousal Support

More information about the parties' financial circumstances is needed. The issues of child support and pendente lite spousal support are continued. The parties are ordered to provide

information regarding their income in 2025 and to date in 2026, and their access to funds to pay expenses.

The matter is continued to August 13, 2026. By July 23, 2026, each party is ordered to provide updated information regarding income and gifts received in 2025 and 2026 to date, as well as a detailed explanation of how each party is paying for their expenses. By August 6, 2026, each party is ordered to provide a declaration regarding the dates and times that Father has visited with the minor child, in 2025 and in 2026 to date.

Counsel for Father is ordered to prepare the formal Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002533

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ALEXANDER VAZ

and

RESPONDENT: EVA VAZ

NATURE OF PROCEEDINGS: REQUEST FOR ORDER –SCHOOL SELECTION;
COMMUNITY FUNDS

RULING

This matter is before the Court on Respondent/Mother's June 10, 2026, Request for Order (RFO). Mother's RFO requests (1) school selection for the parties' children, Lachlan (DOB: 11/12/2019) and Tate (DOB: 03/03/2021), (2) an advance of community funds, and (3) orders restricting the use of community funds under Petitioner/Father's sole control. Mother's RFO was brought as an *ex parte* request seeking shortened time for hearing. Father opposed orders pending a hearing but agreed to shortened time.

Specifically, Mother seeks (1) an order that Father pay for Marin Montessori for the boys, (2) an order that Father obtain Mother's consent before using any community funds under his control, (3) an order that Father maintain the joint account at the level of \$5,000, and (4) an advance to Mother from community funds of \$33,782.

School Selection - Marin Montessori – (MMS)

Mother states that Tate is in his final P3 (kindergarten) year at MMS and that Lachlan will be moving up to elementary school with his friends. School commences on August 25 for Lachlan and August 27 for Tate. Mother describes that the boys are excited to move up with their friends who also attend MMS. Mother is involved at MMS, and she will be a "room parent" in Tate's class next year.

Mother states Father wants the children to switch to public school, although he is amenable to them continuing at MMS if Mother wishes to pay for it. Mother is concerned about transitioning the boys to public school during the period of their parents' separation. Mother borrowed money from her partner to pay the deposit and the first month's tuition to preserve the boys' places at MMS. Mother seeks an order that Father pay for MMS due to his superior financial situation and access to funds. In her Reply, Mother states that Father could advance the funds using a credit card until he receives his expected annual bonus in December.

Father states that the parties' housing costs and debt service exceed his net income, and Mother does not contribute to family expenses. Father asserts that the parties have monthly installment payments totaling \$11,321, in addition to their mortgage of \$11,432 per month and other living expenses. Father asserts that his actual monthly expenses, excluding MMS tuition, amount to \$51,778 per month, in excess of his net income. Father states the tuition at MMS is \$6800/month total for the two children, and he opposes incurring that cost given the public school options in Marin. Father secured places for the boys at Park Elementary in Mill Valley, near Father's rental.

Father opposes the children attending MMS because he does not believe that it is necessary for the boys nor affordable for either party. Father states that Mother paid \$8000 towards the tuition downpayment in April 2026, over Father's objection. Father requests an order that, if Mother wishes to pay for the tuition for the boys, that she advance the full year so as to avoid the risk of pulling them out mid-year.

Mother's Reply clarifies that the tuition cost is \$8237/month at a minimum for the two boys.

Mother's request that Father be ordered to pay tuition for MMS is DENIED, on the grounds that (1) good, viable public school options exist in Marin County and, (2) in spite of his significant monthly income, Father's base monthly income is not sufficient to cover the family's living expenses and private school tuition.

Advance of Community Funds for Attorney's Fees

Mother requests that she be advanced \$33,782 from community funds, which consists of \$16,282 for attorney's fees (Mother asserts that Father initially agreed to this, as the amount is equal to what he paid his attorney). Mother requests an additional \$17,500 because she was recently informed that Father spent that additional amount on his own attorney fees and costs.

Father opposes this request, arguing that Mother has had exclusive use of the family home, and Father has paid all the carrying costs of \$19,372 per month. Father argues that this amount exceeds guideline temporary spousal support and child support by about \$6,800 per month. He argues that the value received by Mother exceeds how much Father paid his attorneys. Father asserts that when he agreed to pay attorney fees of \$16,282, Mother's attorney informed him that Mother had already paid her attorney, and wanted the funds paid directly to her so she could pay back her boyfriend.

Mother further asserts that Father has spent the bonus fund, and requests the Court prohibit Father from spending down community funds. Father argues that the dissipation of the bonus funds illustrates the persistent problem of the parties' inability to agree on how to manage their finances. Father asserts that the parties' monthly outflow, which is \$77,000 per month according to Mother (not including Father's monthly rental), or \$58,000 per month according to Father, including his rental costs.

Mother's sole basis for her fee request is that Father spent that amount on his attorney's fees. Mother has not presented the required evidence regarding the reasonableness and necessity of the fees requested. Accordingly, Mother's request for fees on that basis is DENIED.

The Court notes Mother's request is for an advance of community funds, rather than for attorney's fees pursuant to FC 2030. The denial of an advance of community funds is without prejudice to any future request under Family Code section 2030.

Maintain \$5000 in Joint Account

Mother also seeks an order that Father maintain \$5,000 in their Wells Fargo joint account, as previously agreed. Father disputes this, stating he agreed to deposit \$5,000 per month, not maintain the account at \$5,000 – Father states there is no way financially that he can keep up with Mother's spending.

There is no basis in law or on these facts for an order that Father provide constant access to additional cash for Mother. Mother has not sought child or spousal support – perhaps because, as Father argues, he is paying expenses in excess of the guideline.

Consent for Expenditures of Community Funds

Mother's request that Father be prohibited from using community funds to pay expenses is premature. Any claims that Father owes reimbursements to the community should be resolved at trial.

Father's request to sell the family residence.

Father requests the family residence be listed for sale "forthwith" because his monthly outflow exceeds his net income. Father states that he cannot afford the family residence, and the parties frequently disagreed about finances. Father reports that the parties both spoke with a realtor in December but then Mother refused to engage further. Father asserts that the parties have depleted their liquidity and that selling the house is in the community's best interest. Father argues that the sale of the house is related (Family Code section 213) to Mother's request for orders relating to management and control of community funds.

Mother opposes the sale of the residence and argues that the sale of the family residence is not a related issue. Mother states that she acknowledges the residence will likely be sold, but the realtor advised the parties they needed to do substantial preparatory work, and that the optimal time to list the property is in March. Mother points out that Father's request to sell the house is an example of his exertion of financial control over Mother, and that an order releasing an advance of \$33,782 of community funds to Mother would help shift that dynamic.

There is no evidence that the house is at risk of foreclosure. This is a trial issue and unless there is evidence of potential waste or risk of foreclosure, there is no basis for a *pendente lite* order to sell the house at this time. Accordingly, Father's request for an order to sell the family house at this time is DENIED.

Counsel for Father is ordered to prepare the formal Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

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